

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
August 17, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2020-01162829 Schwenk vs. Bristol Farms	The tentative ruling is to continue Plaintiff John Schwenk's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to December 7, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel

	must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage. The motion fails to provide the estimated high and low payments to be paid to class members. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. Class members and PAGA members should be able to object to the settlement amount allocated to PAGA penalties. The following must be deleted from Paragraph 4.4 of the settlement: "The Parties also agree that no Bonus Wage Statement/Regular Rate PAGA Settlement Member or PAGA Settlement Member has the right to object to the PAGA Penalty Fund." The settlement agreement fails to explain how the Administrator will resolve any workweek disputes, and the class notice does not provide for any procedure for class members and PAGA members to submit disputes regarding the calculation of their qualifying workweeks. The documents should also state that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. Paragraph 4.2 of the settlement agreement provides that objections to the settlement must be in writing, but that requirement is overly restrictive and arguably inconsistent with CRC Rule 3.769(f). The settlement agreement must be modified to reflect that either an objection may be in writing, or a class member may orally object or otherwise offer comments at the Final Approval Hearing.
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		There is no information as to how many of the class members or aggrieved employees speak and/or read English, which might require that the class notice also be in another language. Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. In addition, the class members and PAGA members must be notified of the Final Approval Hearing date, which should be stated in Section 5 on page 6 of the class notice. At the top of page 1 of the class notice, the following phrase: "If you: (1) are or were employed by Bristol Farms in California as an hourly-paid non-exempt employee from October 22, 2017, to March 30, 2025 you could receive a payment from a class action and PAGA settlement," must be corrected to state: "If you are or were employed by Bristol Farms in California as an hourly-paid non-exempt employee from October 22, 2017 to March 30, 2025, you could receive a payment from a class action and PAGA settlement." Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
2	30-2024-01401021 Rivera vs. Marway Power Systems Inc.	The tentative ruling is to continue Plaintiff Delmy Rivera's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to December 14, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel